

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

FORMUKLEEN, INC., *Complainant*

v.

TOP SHIPPING SYSTEMS, CORP., *Respondent*.

DOCKET NO. 25-08

Served: April 14, 2026

ORDER OF: Richard AMBROW, *Administrative Law Judge*.

**ORDER DENYING COMPLAINANT’S MOTION FOR RECONSIDERATION OF ORDER GRANTING
RESPONDENT’S MOTION FOR EXTENSION OF TIME**

On April 1, 2026, I entered an Order Granting in Part and Denying in Part Respondent’s Motion to Dismiss, Granting in Part and Denying in Part Complainant’s Motion to Compel, and Requiring Respondent to Provide a Declaration (the “April 1 Order”). Relevant to the present Order, the April 1 Order required Respondent to provide a Declaration, as well as supplement responses to Requests for Production Nos. 4 and 7, and Interrogatory No. 1, no later than April 15, 2026.

On April 10, 2026, Respondent filed Respondent’s Motion for Extension of Time (“MTE”). In brief, Respondent notes that it retained new counsel, and seeks to have until April 29, 2026, to comply with the April 1 Order. Respondent states it sought concurrence from Complainant’s representative, but concurrence was denied. (*See generally* MTE).

On April 12, 2026, Complainant filed Complainant’s Opposition to Respondent’s Motion for Extension of Time (“MTE Opp.”). Complainant points out that Commission Rule 23(d) states that “Substitution of counsel or representative will not, by itself, be considered good cause for delaying a proceeding.” (46 C.F.R. § 502.23(d)). Complainant also argues that it has been seeking this discovery for many months, Respondent has already continuously failed to produce it, and there is no good reason for yet further delay. (*See generally* MTE Opp.).

On April 13, 2026, I entered an Order Granting Respondent’s Motion for Extension of Time (the “April 13 Order”), finding that it is reasonable to expect that new counsel will require a reasonable amount of time to become familiar with a file, and, in this case, perform necessary searches for documents and information. I also found that any prejudice may be cured by an extension of discovery.

Complainant filed a Motion for Reconsideration of Order Granting Respondent’s Motion for Extension of Time (“MTR”). In short, Complainant again notes that Commission Rule 23

states that substitution alone is not reason to delay the case. Complainant asserts that it would be prejudiced by yet further delay.

The MTR is **DENIED**. I appreciate Complainant's points. Nevertheless, under the circumstances, I find it reasonable to allow Respondent's new counsel additional time to become familiar with the case, and produce the relevant discovery responses. As noted previously, the key issue is whether Respondent acted as an NVOCC in relation to the shipments at issue – I recently reiterated as much in the April 1 Order. Complainant itself has argued that Respondent likely has much of that key information. (*See, e.g.*, Complainant's Opposition to Respondent's Motion to Dismiss for Lack of Jurisdiction). Therefore, I am inclined to give Respondent a reasonable opportunity to search for and produce that information. If Complainant needs a reasonable period of time to conduct follow-up discovery in light of the delayed production, I would be inclined to grant such a motion.

Pursuant to the April 13 Order, Respondent's deadline for compliance with the April 1 Order remains **April 29, 2026**.

Richard C.
Ambrow Jr -S

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Richard Ambrow
Administrative Law Judge